

PROPOSED
SENATE AMENDMENTS TO H.B. 2400

(Reference to the proposed Bolick s/e amendment dated 3/23/2026 at 9:56 a.m.)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Fuel formulations; waiver request; definitions

4 A. [Notwithstanding the state implementation plan,] within thirty
5 days after the effective date of this act, the director of the department
6 of environmental quality shall in good faith collaborate with the
7 associate director of the weights and measures services division of the
8 Arizona department of agriculture to submit a fuel formulation waiver
9 request for Area A and Area C to the United States environmental
10 protection agency consistent with the waiver process for the regulation of
11 fuels provided in the clean air act.

12 B. The fuel formulation waiver request must:

13 1. Include the available information required by the criteria in
14 the clean air act and must request a twenty-day waiver period. The
15 director of the department of environmental quality shall submit a copy of
16 the request to the president of the senate, the speaker of the house of
17 representatives, the governor and the secretary of state.

18 2. Include all available information in an effort to demonstrate to
19 the United States environmental protection agency that extreme and unusual
20 fuel supply circumstances exist that prevent the distribution of an
21 adequate supply of fuel to consumers, that extreme and unusual fuel supply
22 circumstances are the result of an event that could not reasonably have
23 been foreseen or prevented and that it is in the public interest to grant
24 the fuel formulation waiver. The circumstances and events justifying the
25 requested fuel formulation waiver shall be limited to the adoption and
26 implementation of energy and environmental policies in the state of
27 California and the closure of refineries in that state and may not include
28 any other circumstance or condition.

1 C. If the United States environmental protection agency grants the
2 fuel formulation waiver request pursuant to subsection A of this section
3 or otherwise issues a decision in 2026 to waive the applicable federal
4 standards established under the clean air act, all of the following apply:
5 1. The associate director of the weights and measures services
6 division of the Arizona department of agriculture shall waive the
7 applicable state requirements provided in section 3-3491, 3-3492, 3-3493,
8 3-3494, or 3-3495, Arizona Revised Statutes, that result from the fuel
9 formulation waiver.
10 2. The fuel formulation waiver shall be equally applicable to all
11 regulated persons that the standards apply to and may not be selectively
12 applied to any single regulated person.
13 3. Before the expiration of the federal waiver or any fuel
14 formulation waiver extension, if the conditions identified in the fuel
15 formulation waiver or otherwise justifying the fuel formulation waiver
16 continue, the director of the department of environmental quality shall
17 collaborate with the associate director of the weights and measures
18 services division of the Arizona department of agriculture to submit an
19 additional fuel formulation waiver request to the United States
20 environmental protection agency to extend the waiver for an additional
21 twenty days.
22 D. For the purposes of this section:
23 1. "Area A" has the same meaning prescribed in section 49-541,
24 Arizona Revised Statutes.
25 2. "Area C" has the same meaning prescribed in section 3-3401,
26 Arizona Revised Statutes.
27 3. "Clean air act" has the same meaning prescribed in section
28 3-3511, Arizona Revised Statutes.
29 Sec. 2. Emergency
30 This act is an emergency measure that is necessary to preserve the
31 public peace, health or safety and is operative immediately as provided by
32 law."
33 Enroll and engross to conform
34 Amend title to conform

SHAWNNA BOLICK

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03/24/2026
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